

The Industrial Disputes (Central) Rules

FORM Q-A

(To be submitted in triplicate)

See Rule 76-C(1)

Form of notice for permission of closure to be given by an employer under sub-section (1) of Section 25-0 of the Industrial Disputes Act, 1947 (14 of 1947)

Date _____

To,
The Secretary to the Government of India,
Ministry of Labour,
New Delhi.

Sir,

Under Section 25-C of the Industrial Disputes Act, 1947 (14 of 1947), I/we hereby inform you that I/we propose to close down the undertaking specified below of (name of the industrial establishment)

(Give details of the undertaking)

with effect from _____ for the reasons explained in the Annexure.

2. The number of workmen whose services will be terminated on account of the closure of the undertaking is _____ (number of workmen).
3. Permission is solicited for the proposed closure.
4. I / we hereby declare that in the event of approval for the closure being granted, every workman in the undertaking to whom sub-section (8) of the said Section 25-0 applies shall be paid compensation as specified in that section.

Yours faithfully,
(Signature)

ANNEXURE

(Please give replies against each item)

Item No.

1. Name of the industrial establishment with complete postal address, including telegraphic addresses and telephone number.
2. Status of undertaking:-

- (i) Whether Central public sector/State public sector/ foreign majority company /joint sector, *etc.*
 - (ii) If belongs to large industrial house, please indicate the controlling group; and if a foreign majority company, indicate the extent of foreign holdings.
 - (iii) Whether the undertaking is licensed/registered and if so, name of licensing/registration authority and licence/registration certificate numbers.
3. The total number and categories of work-men affected by the proposed closure, along with the addresses of the workmen and the details of wages drawn by them.
 4. Items of manufacture and scheduled industry/industries under which they fall.
 5. Details relating to installed capacity, licensed capacity and utilised capacity.
 6. (1) Annual production, item-wise for the preceding three years.
(ii) Production figures month-wise for the preceding twelve months.
 7. Work in progress--item-wise and value-wise.
 8. Any arrangements regarding off-loading or sub-contracting of products or any components thereof.
 9. Details of persons or the organisations to whom the job/jobs is/are being entrusted—relationship/interest of the persons/organisations with the director/directors or the officer/officers of the company.
 10. Position of the order book--item-wise and value-wise for a period of six months and one year next following, and for the period after the expiry of the said one year.
 11. Number of working days in a week with the number of shifts per day and the strength of workmen per shift.
 12. Balance-sheet and profit and loss account and audit reports for the last three years.
 13. Financial position of the company.
 14. (i) Names of interconnected company or companies under the same management.
(ii) Details about intercorporate investments and changes during the last one year.

- (iii) Interest of any of the directors/officers of the undertaking producing same or similar type of product.
15. Percentage of wages of workmen to the total cost of production.
 16. Administrative, general and selling cost in absolute terms per year for the last three years and percentage thereof to the total cost.
 17. Inventory position--item-wise and value-wise for the preceding twelve months (Inventories to be shown in respect of finished products, components and raw-materials to be shown separately item-wise and value-wise).
 18. Selling arrangement for the last three years and any change in the selling arrangement in preceding twelve months.
 19. Full details of the interest of the directors and officers of the company in the organisations/persons involved in selling products of the undertaking.
 20. Buying arrangements for raw materials and components.
 21. Interests of the directors and officers with the organisations/persons involved in buying raw materials and components for the undertaking.
 22. Annual sales figures for the last three years and month-wise sales figures for the preceding twelve months both item-wise and value-wise.
 23. Reasons for the proposed closure.
 24. Any specific attempt made so far to avoid the closure.
 25. Any other relevant factors with details thereof.